

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 22-03

ONE BANANA NORTH AMERICA CORP.,
COMPLAINANT

v.

HAPAG-LLOYD AG, and
HAPAG-LLOYD (AMERICA) LLC,
RESPONDENTS.

MOTION FOR LEAVE TO AMEND VERIFIED COMPLAINT

Complainant One Banana North America, Inc. (“Complainant” or “One Banana”), by its undersigned attorneys, and pursuant to 46 C.F.R. §§ 502.69 and 502.66, respectfully submits this *Motion for Leave to Amend Verified Complaint* as follows:

1. One Banana filed its Verified Complaint with the Federal Maritime Commission on January 7, 2022.
2. The Verified Complaint was docketed and served on the Respondents, Hapag-Lloyd AG and Hapag-Lloyd (America) LLC (collectively, “Respondents”), on January 24, 2022.
3. Respondents’ answer is due on Friday February 18, 2022.
4. Counsel for Respondents filed its Notice of Appearance on January 31, 2022.
5. Counsel has discovered an inadvertent omission to the Verified Complaint such that Complainant believes justice would best be served by way of a verified amendment to the original Verified Complaint.

6. As no discovery or motion practice has begun, Respondents will not be prejudiced by this limited amendment.

7. Counsel for Complainant conferred with Respondents' counsel on February 1, 2022, pursuant to 46 CFR §502.71(a), and Respondent is not opposed to the proposed amendment of the Verified Complaint.

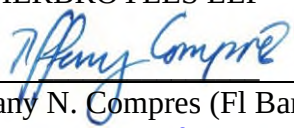
CONCLUSION

For the foregoing reasons, Complainant respectfully requests that the Commission issue an order granting this Motion to Amend Compliant and ordering such other and further orders or relief as the Commission deems just and proper.

February 4, 2022

Respectfully submitted,

FISHERBROYLES LLP

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Counsel for Complainant

One Banana North America Corp.

CERTIFICATE OF SERVICE

I hereby certify that on February 4, 2022, the foregoing Motion for Leave to Amend Verified Complaint has been served by electronic means pursuant to the below list.



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HAPAG-LLOYD AG, and
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RESPONDENTS.

VERIFIED AMENDED COMPLAINT

Complainant One Banana North America, Inc. (“Complainant” or “One Banana”), by its undersigned attorneys, files this Verified Complaint against Respondents Hapag-Lloyd (America) LLC and Hapag-Lloyd AG (collectively, “Hapag Lloyd” or “Respondent”) to seek reparation for injuries to One Banana caused by Respondent’s violations of the Shipping Act of 1984, 46 U.S.C. § 40101, *et. seq.* (the “Shipping Act”) as follows:

I. COMPLAINANT

1. Complainant One Banana is a corporation organized under the laws of the State of Florida with a principal place of business at 333 SE 2nd Avenue Suite 2000 Miami, FL 33131, with an email address at info@onebananas.com.

2. One Banana ships fresh bananas from Central and South America to the United States, where it sells them to various wholesalers and retailers. For purposes of its service contracts with Respondent, One Banana was a “shipper” as defined in 46 U.S.C. § 40102(23).

3. The names and addresses of the attorneys representing Complainant are: (1) Tiffany N. Compres, FisherBroyles LLP, 1221 Brickell Avenue, Suite 900, Miami Florida, tiffany.compres@fisherbroyles.com, and (2) Gene M. Burd, FisherBroyles LLP, 1200 G Street NW, Suite 800, Washington, D.C. 20005, gene.burd@fisherbroyles.com.

II. RESPONDENT

4. Upon information and belief, Respondent Hapag-Lloyd AG is a company existing under the laws of the Republic of Germany with its principal place of business at Ballindamm 25, D-20095 Hamburg, Germany, acting in the United States through its agent, Hapag Lloyd (America) LLC, an entity organized under the laws of the State of Delaware, with a principal place of business at 399 Hoes Lane Piscataway, NJ 08854.

5. Hapag Lloyd is and was at all times pertinent to this Complaint a “common carrier” within the meaning of the Shipping Act, 46 U.S.C. § 40102(7), subject to regulation by the Federal Maritime Commission (“FMC”). The email address currently known for Respondent is Tony.DeCiccio@hlag.com.

III. JURISDICTION

6. The FMC has subject-matter jurisdiction over this Complaint pursuant to the Shipping Act of 1984.

7. This Complaint is being filed pursuant to Section 11(a) of the Shipping Act, 46 U.S.C. § 41301. One Banana is seeking reparations for injuries caused to it by Respondents due to their violations of 46 U.S.C. § 41102(c).

8. The FMC has personal jurisdiction over Hapag Lloyd as a “common carrier” as defined in 46 U.S.C. § 40102(7).

9. Respondent's actions alleged herein constitute (1) failures by Respondent to establish, observe, and enforce just and reasonable practices relating to receiving, handling, storing, and delivering the property of One Banana, in violation of 46 U.S.C. § 41102(c) and 46 C.F.R. §§545.4 and 545.5 (2) unreasonable refusal to deal or negotiate with One Banana, in violation of 46 U.S.C. Section 41104(a)(10).

IV. FACTUAL ALLEGATIONS

10. One Banana is part of the ~~AgroAmerica~~AgroFruit Group of Companies ("~~AgroAmerica~~AgroFruit"), along with its sister entities One Banana, Inc. and Bananera Nacional S.A. ~~AgroAmerica~~AgroFruit is a vertically integrated group of companies with over 13,000 employees. It is one of the largest producers of tropical fruits in Central America, with customers including large U.S. based grocery chains and wholesalers.

11. On or about January 1, 2021, ~~AgroAmerica~~AgroFruit, through its subsidiary Bananera Nacional S.A., entered into a Service Contract No. S20LCA034¹ (as amended, the "Service Contract") with Hapag Lloyd AG for the carriage of fresh bananas from ports in Guatemala and Ecuador to various ports in the United States, including Long Beach and Los Angeles, California and Seattle, Washington, for the year 2021.

12. On or about March 5, 2021, the parties amended Service Contract No. S20LCA034 to include an Oakland, California port of destination. The Service Contract remained effective for the entire year 2021.

¹ The Service Contract contained a typo, showing it to be No. S20LCA054, when it was actually number 34, which is correctly reflected in the Amendment dated March 5, 2021.

13. Each shipment under the Service Contract was documented by a Sea Waybill containing Respondent's Terms and Conditions. The relevant Sea Waybills designate One Banana as consignee. One Banana is also a beneficial cargo owner. Accordingly, One Banana is a shipper within the meaning of 46 U.S.C. § 40102(23).

14. One Banana receives the fresh bananas in the United States and delivers them to its customers, typically pursuant to annual contracts.

15. The bananas are typically shipped in 40-foot-long refrigerated containers.² Pursuant to the terms of the Service Contract, One Banana is allowed 6 days of demurrage free time and 5 days of detention free time. One Banana arranges for trucks to pick up containers at the port within demurrage free time. After the containers are picked up, they are transported to destination warehouses, where they are unloaded, and empty containers are returned to the port to the custody of Hapag Lloyd within detention free time.

16. In order to pick up a full container that arrived, Hapag Lloyd from time to time required that a trucker drop off an empty container. This is a so-called dual transaction or dual appointment requirement. If the consignee does not have a corresponding full pick up at the terminal it may not drop off the empty. Importantly, Hapag Lloyd does not waive demurrage or detention charges even if it does not make drop off locations available.

17. In or about September of 2021, One Banana started receiving information from trucking companies it had engaged to pick up containers from the port that Hapag Lloyd severally limited or even stopped providing return locations for empty containers. In certain instances, One

² Refrigerated containers are typically referred to as reefers.

Banana was informed that trucks had to wait for **weeks** before a location to return empty containers would become available.

18. According to certain trucking companies, Hapag Lloyd required them to send an email to Hapag Lloyd in order to obtain a daily report of available empty return locations. Initially, Hapag Lloyd would send an automatic response with available return locations. However, the automatic responder was eventually deactivated, and Hapag Lloyd would provide the response at its discretion, if at all.

19. Furthermore, according to the trucking companies, even in cases when Hapag Lloyd would provide return locations for the empty reefers, it would require the trucking companies to make the appointment on a dual transaction basis only. That means that the truckers would be required to pick up a loaded container at the same time the empty reefer is dropped off. Moreover, in some instances, Hapag Lloyd would inform truckers that the return locations are available when, in fact, truckers were unable to make appointment with the terminal reservation system.

20. The foregoing circumstances, which are normal and customary for Hapag Lloyd, and occurring on a continuous basis, resulted in a situation in which trucking companies refused or charged exorbitant prices to pick up Hapag Lloyd containers. As an illustration, in some instances, One Banana had to pay in excess of \$7,000 per container for the drayage of reefers from the port to a local warehouse. In another case, when One Banana reached out to a trucking company to arrange for pickup of Hapag Lloyd containers, the company would only do so if One Banana paid \$12,000 to cover anticipated per diem charges that the trucking company would be charged by Hapag Lloyd due to unavailable empty return locations as follows:

Hapag has no return locations for the empties. We have some empties out for a month.

We are in constant communication with them to return the empties unfortunately Hapag has made it extremely difficult to return containers. Hapag return location message sometimes advises “per diem is waived” but they don’t, as they continue to send per diem invoices.

They charge \$400 per day plus an additional \$50 processing fee. So if we keep the container here for 30 days $400 \times 30 = 12,000$

Plus chassis charges \$60 per day and storage charges \$200 per day.

If you like to move forward you will need to pay before the move is made.

21. During the relevant period, One Banana reached out to over 15 trucking companies in an attempt to arrange for the pickup of the reefers. However, almost all of them refused to pick up containers as soon as they learned that the containers were from Hapag Lloyd.

22. As a result of the Hapag Lloyd’s ongoing, customary, and continuous failure to arrange for sufficient locations for the return of empty containers, and despite One Banana’s best efforts, on multiple occasions One Banana was unable to pick up loaded reefers during the free time, and Hapag Lloyd imposed demurrage charges on One Banana despite having itself created the situation that prevented One Banana from picking up the containers. Likewise, when One Banana was unable to find truckers to return empties due to the circumstances Hapag Lloyd itself had created, Hapag Lloyd imposed demurrage charges against One Banana.

23. Hapag Lloyd unfairly profited from the delays caused by its own refusal to accept empty containers because it then normally, customarily, and continuously charged demurrage for the containers that arrived and could not be retrieved. Likewise, Hapag Lloyd unfairly charged detention fees. The unjust and unreasonable demurrages and detention charges to date total over \$321,523. Further, the delays Hapag Lloyd caused resulted in damage to the perishable cargo of

fresh bananas, which deteriorated and were ultimately rejected by the buyer. To date, costs in connection with dumping, inspections, and transportation of the spoiled fruit, totaled in excess of \$365,947, in addition to the significant cost of the product itself and lost sales, which amounts are still being determined.

24. At the same time, Hapag Lloyd's profiteering reportedly allowed it to increase its profits in 2021 ten-fold.

25. One Banana notified Hapag Lloyd of the situation in the port and requested that it address the issues. However, Hapag Lloyd ignored One Banana's request.

A. The Affected Shipments

26. As of the date of this Complaint, about 77 containers over 8 different voyages have been affected. One Banana has incurred in excess of **USD \$687,470.5** in unfair demurrage and detention charges, and costs in connection with dumping, inspection, and transportation of the perished cargo as a result of Hapag Lloyd's actions. These costs do not include the value of the perished cargo itself, which will be provided at a later time.

27. After failing to receive any response from Hapag Lloyd with respect to its requests for improvement on the situation, on or about November 1, 2021, One Banana, through counsel, sent Hapag Lloyd a demand for reimbursement of the disputed demurrage and detention charges, as well as for compensation for damages incurred due to the violations of the Shipping Act.

28. All conditions precedent, including demand, to this action have occurred, been satisfied, and/or have been waived.

29. One Banana has been forced to retain FisherBroyles LLP to represent it in this action and has agreed to pay the law firm's attorneys' fees. Accordingly, One Banana requests that the Commission award it reasonable attorneys' fees under 46 C.F.R. § 502.254 if it prevails.

V. VIOLATIONS OF THE SHIPPING ACT

COUNT I – VIOLATION OF 46 U.S.C. § 41102(c)

30. One Banana realleges each allegation above as if fully set forth herein.

31. The foregoing [customary](#), continuous, [and](#) ongoing conduct by Hapag Lloyd in connection with its respective receipt, handling, storage, and delivery of the property of One Banana and, upon information and belief, of other shippers, constitutes failures by Hapag Lloyd to establish, observe, and enforce just and reasonable practices relating to receiving, handling, storing, and delivering the property of One Banana and other shippers, in violation of 46 U.S.C. Section 41102(c).

32. The Commission has adopted an interpretive rule to establish guidance for determining whether practices with respect to demurrage and detention are unjust and unreasonable. See Docket No. 19-05, 46 CFR § 545.5 (the "[Interpretive Rule](#)"). The Interpretive Rules provides that:

(c)*Incentive Principle*. In assessing the reasonableness of demurrage and detention practices and regulations, the Commission will consider the extent to which demurrage and detention are serving their intended purposes as financial incentives to promote freight fluidity.

(d) Particular Applications of Incentive Principle. -- (1) Cargo Availability. The Commission may consider in the reasonableness analysis the extent to which demurrage practices and regulations relate demurrage or free time to cargo availability for retrieval.

(2) Empty Container Return. Absent extenuating circumstances, practices and regulations that provide for imposition of detention when it does not serve its

incentivizing purposes, such as when empty containers cannot be returned, are likely to be found unreasonable.

33. As the Commission explained:

“cargo availability” or “accessibility” refers to the actual ability of a cargo interest or trucker to retrieve its cargo. Cargo is not available, for instance, if a cargo interest or trucker cannot pick it up because it is in a closed area of a terminal, or if the port is closed. Examples of demurrage practices that are expressly linked to container availability, and which the Commission would weigh positively in the reasonableness analysis, include: (a) starting the free time clock upon container availability as opposed to container discharge from a vessel; (b) public notice of terminal yard closures; and (c) stopping a demurrage or free time clock when a container is rendered unavailable, such as upon notice of a yard or terminal closure or when a trucker cannot get an appointment within a reasonable time of it becoming available.

48 CFR Part 545, Docket 19-05, at 8.

34. The facts asserted in this Complaint establish that Hapag Lloyd’s practices have affected freight fluidity such that One Banana is unable to pick up its containers because it, through the trucking companies it engages, is unable to return empty containers. Furthermore, Hapag Lloyd employs unreasonable and unjust practices with respect to demurrage and detention when it imposes these charges and when it severely limits or fails to provide appointments for the return of empty containers while at the same time requiring trucking companies to make dual transaction appointments, which result in One Banana’s inability to pick up containers within the free time window.

34.35. In addition, Hapag-Lloyd’s practices and regulations regarding detention and demurrage do “not serve . . . incentivizing purposes” because the product in question is fresh bananas – a perishable good that loses value with every day it is not picked up. Accordingly, Hapag Lloyd’s practices and regulations regarding detention and demurrage are unreasonable.

COUNT II – VIOLATION OF 46 U.S.C. § 41104(a)(10)

~~35.~~36. One Banana realleges each allegation above as if fully set forth herein.

~~36.~~37. The foregoing conduct by Hapag Lloyd in the course of negotiating its Service Contract with One Banana and providing service to One Banana pursuant to that Service Contract, which is continuous and ongoing, constitutes unreasonable refusal to deal or negotiate with One Banana, in violation of 46 U.S.C. Section 41104(a)(10).

VI. CAUSATION

~~37.~~38. The foregoing alleged illegal acts of Respondents have directly and proximately injured One Banana because (1) Hapag Lloyd thereby forced One Banana to pay demurrage charges for delays that Hapag Lloyd itself caused, and (2) Hapag Lloyd thereby caused delays in retrieving containers of perishable product, which caused the fresh bananas to rot and ultimately be rejected by the buyer.

VII. COMPLAINANT'S DAMAGES

~~38.~~39. One Banana has been, and continues to be, actually and materially injured by Hapag Lloyd's continuous conduct in violation of the Shipping Act alleged herein.

~~39.~~40. Hapag Lloyd's violations alleged herein are causing direct, proximate, and ongoing financial damages to One Banana in an amount already believed to exceed \$773,000, currently accruing, and to be further demonstrated in this proceeding.

VIII. PRAYER FOR RELIEF

WHEREFORE, One Banana respectfully requests that the FMC require Hapag Lloyd to answer the charges made in this Verified Complaint and prays for relief from the FMC as follows:

1. An investigation by the FMC of the allegations in this Verified Complaint pursuant to 46 U.S.C. Section 41301(c);
2. An Order, after due investigation pursuant to 46 U.S.C. Sections 41302 and 41303 and a hearing pursuant to 46 U.S.C. Section 41304, finding that Respondents have violated 46 U.S.C. Section 41102(c) in connection with their respective receipt, handling, storage, and delivery of the property of One Banana, and that Hapag Lloyd has violated 46 U.S.C. Section 41104(a)(10) by unreasonably refusing to deal or negotiate with One Banana;
3. An Order (1) compelling Hapag Lloyd to cease and desist from violation of the Shipping Act and (2) putting in place lawful and reasonable practices to preclude Hapag Lloyd from refusing to accept empty containers and/or to preclude Hapag Lloyd from charging demurrage in connection therewith.
4. An Order requiring Hapag Lloyd to pay One Banana reparations for the unlawful conduct alleged herein in an amount to be proven pursuant to 46 U.S.C. Section 41305, with interest pursuant to 46 U.S.C. Section 41305(a), One Banana's reasonable attorneys' fees as "the prevailing party" pursuant to 46 U.S.C. Section 41305(e), and any other sum the FMC determines to be proper; and
5. Such other and further orders or relief as the FMC deems just and proper.

| Dated: ~~January 19~~February 3, 2022
Washington, D.C.

Respectfully submitted,

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